



CHAPTER ii.

An Act to empower the Newcastle and Gateshead Water Company to construct new waterworks and to acquire lands and easements therefor to authorise the Company to discontinue the use of certain existing waterworks and to dispose of the site thereof and for other purposes.

[21st May 1942.]

WHEREAS the Newcastle and Gateshead Water Company (hereinafter referred to as "the Newcastle Company") were incorporated by the Newcastle and Gateshead Waterworks Act 1863 and are by virtue of that Act and subsequent Acts authorised to supply water within an area which comprises the city and county of Newcastle-upon-Tyne the boroughs of Gateshead and Wallsend and certain parishes and places in the counties of Durham and Northumberland :

26 & 27 Vict.
c. xxxiv.

And whereas the Newcastle Company are the owners of and use for the purposes of their undertaking a service reservoir (hereinafter referred to as "the existing reservoir") and lines of pipes leading thereto and therefrom in the urban district of Ryton in the said county of Durham which were constructed by them under powers conferred by the Blaydon and Ryton Water (Transfer) Act 1908 :

8 Edw. 7.
c. xlv.

And whereas the lands (hereinafter referred to as "the reservoir lands") forming the site of the existing reservoir and of parts of the said lines of pipes were formerly ancient copyhold of the Manor of Chester in the said county of Durham and accordingly the Newcastle Company although they have not acquired the coal mines or other mines and minerals (all of which are hereinafter referred to as "minerals") under the reservoir lands are entitled at common law to subjacent and adjacent support for the reservoir lands :

1 & 2 Geo. 6.
c. 52.

And whereas the minerals under the reservoir lands and other adjacent lands in the said urban district of Ryton are the property of the Ecclesiastical Commissioners but will shortly vest in the Coal Commission pursuant to the provisions of the Coal Act 1938 :

And whereas the Stella Coal Company Limited (hereinafter referred to as " the Stella Company ") are the lessees under the Ecclesiastical Commissioners for a term of years expiring on the thirty-first day of December one thousand nine hundred and fifty-nine of the minerals under the reservoir lands and other adjacent lands in the said urban district of Ryton and their mineral workings are approaching the reservoir lands :

And whereas the Stella Company recently applied to the Newcastle Company for permission to work the minerals under the reservoir lands notwithstanding that by such working damage might be caused to the existing reservoir and the site thereof and to the said parts of lines of pipes but the Newcastle Company being apprehensive that such damage would be so caused were not prepared to grant such permission :

And whereas the Stella Company being desirous in the national interest of working the minerals under the reservoir lands have entered into an agreement with the Newcastle Company under the provisions of which (inter alia)—

- (a) the Newcastle Company have agreed that upon the bringing into use of the new service reservoir and other works by this Act authorised the Stella Company shall cease to be under any liability to compensate them for any damage which may be caused to the existing reservoir or the site thereof or to the said parts of lines of pipes by any mineral workings of the Stella Company ; and
- (b) the Stella Company have agreed to procure the requisite covenants to be entered into with the Newcastle Company for ensuring the sterilisation in perpetuity of all or some part of the unworked coal and fireclay in all seams under or within a specified radius from the site of the said new service reservoir :

And whereas it is expedient that the Newcastle Company should be empowered to construct the new service reservoir and execute the other works by this Act authorised and to acquire lands and easements therefor and upon the completion and bringing into use of the said new service reservoir and works to discontinue the use as a reservoir of the existing reservoir and the use of so much of the lines of pipes constructed in connection therewith as will not be required for use in connection with the said new service reservoir :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas plans and sections showing the situations lines and levels of the works by this Act authorised and the lands which may be taken or used compulsorily for the purposes thereof and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands have been deposited with the clerk of the county council of the administrative county of Durham and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may for all purposes be cited as the Newcastle and Gateshead Waterworks Act 1942 and the existing Acts and this Act may be together cited as the Newcastle and Gateshead Waterworks Acts 1863 to 1942. Short and collective titles.

2. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act or the existing Acts) are hereby incorporated with this Act (namely) :— Incorporation of Acts.

(1) The Waterworks Clauses Acts 1847 and 1863 except the words “ with the consent in writing of the owner or “ reputed owner of any such house or of the agent of “ such owner ” in section 44 of the Waterworks Clauses Act 1847 : 10 & 11 Vict.
c. 17.
26 & 27 Vict.
c. 93.

(2) The Lands Clauses Acts except sections 127 to 131 of the Lands Clauses Consolidation Act 1845 relating to the sale of superfluous lands : 8 & 9 Vict.
c. 18.

Provided that any question of disputed compensation under the Lands Clauses Acts (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Newcastle Company and the person claiming the compensation or in default of such agreement appointed by the President of the Chartered Surveyors' Institution on the application of either party :

(3) The Companies Clauses Consolidation Act 1845 except the provisions thereof with respect to the conversion of the borrowed money into capital. 8 & 9 Vict.
c. 16.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

And in this Act unless the subject or context otherwise requires—

“the Newcastle Company” means the Newcastle and Gateshead Water Company ;

“the existing Acts” means the Newcastle and Gateshead Waterworks Act 1863 the Newcastle and Gateshead Waterworks Act 1866 the Newcastle and Gateshead Waterworks Act 1870 the Newcastle and Gateshead Waterworks Act 1876 the Newcastle and Gateshead Waterworks Act 1877 the Newcastle and Gateshead Waterworks Act 1889 the Newcastle and Gateshead Waterworks Act 1890 the Newcastle and Gateshead Waterworks Act 1894 the Newcastle and Gateshead Waterworks Act 1898 the Newcastle and Gateshead Waterworks Act 1902 the Newcastle and Gateshead Waterworks Act 1904 Part IV and such of the provisions as relate to the Newcastle Company of Parts I II and V of the Blaydon and Ryton Water (Transfer) Act 1908 the Newcastle and Gateshead Waterworks Act 1922 the Newcastle and Gateshead Waterworks Act 1935 the Newcastle and Gateshead Waterworks Act 1938 and the Newcastle and Gateshead Waterworks Act 1940 ;

“the undertaking” means the undertaking of the Newcastle Company as authorised for the time being ;

“the limits of supply” means the limits within which the Newcastle Company are for the time being authorised to supply water ;

“the existing reservoir” means the service reservoir (Work No. 1) constructed under the powers of the Blaydon and Ryton Water (Transfer) Act 1908.

Power to
construct
works.

4. Subject to the provisions of this Act the Newcastle Company may make and maintain in the administrative county of Durham the works hereinafter in this section described in the lines and situations shown on the deposited plans and according to the levels shown on the deposited sections (that is to say) :—

Work No. 1 A service reservoir in the urban district of Blaydon ;

Work No. 2 A line or lines of pipes commencing in the urban district of Ryton by a junction with an existing pipe of the Newcastle Company and terminating in the urban district of Blaydon in the service reservoir (Work No. 1) hereinbefore described ;

Work No. 3 A line or lines of pipes commencing in the urban district of Blaydon in the said service reservoir (Work No. 1) and terminating in the urban district

of Ryton by a junction with an existing pipe of the Newcastle Company ;

Work No. 4 A line or lines of pipes in the urban district of Blaydon commencing by a junction with the line or lines of pipes (Work No. 2) hereinbefore described and terminating by a junction with the line or lines of pipes (Work No. 3) hereinbefore described ;

Work No. 5 A line or lines of pipes in the urban district of Blaydon commencing in the said service reservoir (Work No. 1) and terminating in the Coal Burn.

5. In addition to the works authorised by the section of this Act of which the marginal note is " Power to construct works " the Newcastle Company may upon any lands delineated on the deposited plans make maintain and alter all such cuts channels conduits pipes culverts drains sluices washouts bye-washes overflows gauges banks walls embankments telegraphic telephonic and other means of electric communication engines buildings machinery and appliances as may be necessary or convenient in connection with or subsidiary to the said authorised works or any of them or the undertaking but nothing in this section shall exonerate the Newcastle Company from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them Provided that any telegraphic telephonic and other means of electric communication made or maintained by the Newcastle Company under the provisions of this section shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869 and shall not be installed or worked in contravention of the Wireless Telegraphy Acts 1904 to 1926 or any statutory re-enactment or modification thereof and shall not be constructed maintained or used in such a manner as to interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

Subsidiary
works.

32 & 33 Vict.
c. 73.

41 & 42 Vict.
c. 76.

6. In the construction of the works authorised by this Act the Newcastle Company may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and may also deviate vertically from the levels shown on the deposited sections to any extent Provided that—

Deviation.

- (a) the Newcastle Company shall not construct any embankment or wall of the service reservoir (Work No. 1) by this Act authorised of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition ; and

(b) except for the purpose of crossing over a stream no part of any line or lines of pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

Works to
form part of
undertaking.

7. Subject to the provisions of this Act the works authorised by this Act shall for all purposes whatsoever form part of and be comprised in the undertaking.

Period for
completion
of works.

8. If the works authorised by this Act are not completed on or before the first day of October one thousand nine hundred and forty-seven or on or before the expiration of five years after such date as may be officially declared to be the termination of the present war (whichever is the later) then as from the first-mentioned date or the expiration of the said period of five years (as the case may be) the powers by this Act granted for the making of the said works or otherwise in relation thereto shall cease except as to such of them or so much thereof as shall then be completed. Provided that the Newcastle Company may at any time extend enlarge alter reconstruct renew or remove any of such works and in the case of any line or lines of pipes lay down additional lines of pipes as and when occasion may require.

Discharge of
water into
streams.

9.—(1) For the purpose of constructing maintaining repairing enlarging extending cleansing emptying testing or examining any of the works authorised by this Act the Newcastle Company may cause the water in any such work to be discharged into any available stream ditch or watercourse and for that purpose the Newcastle Company may lay down and maintain in any street or road (whether within or beyond the limits of supply) all necessary discharge pipes and apparatus and the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall with the necessary modifications apply thereto. Provided that any water so discharged shall so far as may be reasonably practicable be free from mud or solid or offensive matter and matter injurious to fish or spawn or spawning beds or food of fish. Provided also that water shall not be discharged into any stream ditch or watercourse under the powers of this section so as to cause any greater amount of scour than is reasonably necessary or so as to flood or damage any highway.

(2) In the exercise of the powers conferred by this section the Newcastle Company shall do as little damage as may be and shall pay compensation to all persons interested for all damage sustained by them in the exercise of such powers the amount of such compensation to be settled in default of agreement by arbitration.

Power to
acquire lands.

10. Subject to the provisions of this Act the Newcastle Company may enter upon take and use all or any of the lands delineated on the deposited plans and described in the deposited book of

reference which they may require for the purposes of the works authorised by this Act or any of them.

11.—(1) The Newcastle Company may in lieu of acquiring any lands for the purposes of the works authorised by this Act or any of them where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

Company may
acquire
easements only
in certain
cases.

(2) As regards any lands in respect of which the Newcastle Company have acquired easements only under the provisions of this section the Newcastle Company shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and to cultivate the said lands at all times as if this Act had not been passed.

12. If there is any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Newcastle Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the place in which the lands are situate for the correction thereof and if it appears to the justices that the omission or misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate or a copy thereof shall be deposited with the clerk of the county council of the administrative county of Durham and a duplicate thereof shall be deposited with the clerk of the county district in which the lands are situate and such certificate or copy and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Newcastle Company to take the lands and execute the works in accordance with the certificate.

Correction of
errors in de-
posited plans
and book of
reference.

13. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Newcastle Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable

Persons under
disability may
grant
easements &c.

in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to enter upon property for survey and valuation.

14. The Newcastle Company and their surveyors officers and workmen and any person duly authorised in writing under the hand of their secretary may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands authorised by this Act to be taken and used or any of them for the purpose of surveying and valuing the said lands without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands.

Compensation in case of recently acquired interest.

15. For the purposes of determining any question of disputed compensation payable in respect of lands taken or used under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the first day of November one thousand nine hundred and forty-one if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Extinction of private rights of way.

16.—(1) All private rights of way over any lands which the Newcastle Company are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Newcastle Company be extinguished.

(2) Provided that the Newcastle Company shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Period for compulsory purchase of lands.

17. The powers of the Newcastle Company for the compulsory purchase of lands for the purposes of this Act shall cease on the first day of October one thousand nine hundred and forty-five.

Power to discontinue existing reservoir.

18.—(1) On and after the date on which the works by this Act authorised are brought into use the Newcastle Company may discontinue the use as a reservoir of and (if they think fit) demolish the existing reservoir and discontinue the use of and (if they think fit) remove so much of the lines of pipes constructed in connection with the existing reservoir as will not be required for use in connection with the service reservoir (Work No. 1) by this Act authorised and may appropriate and use for any purpose of the undertaking or sell grant or otherwise deal with or dispose of the existing reservoir or the materials thereof and the lands belonging

to the Newcastle Company and held for the purposes thereof and the said portions of lines of pipes :

Provided that notwithstanding any enactment or rule of law to the contrary any person being the purchaser or grantee of the said lands and the successors and assigns of any such person shall not as against any other person for the time being entitled to work the mines and minerals under the said lands have any right of subjacent or adjacent support for the said lands or be entitled to claim compensation for any injury to the said lands caused by or resulting from such working.

(2) The existing reservoir and the said lands shall when vested in any purchaser or grantee thereof under the powers of this section be freed and discharged from all mortgages or other charges affecting the undertaking.

19. The Newcastle Company may apply to the purposes of this Act to which capital is properly applicable any moneys which they are already authorised to raise and which may not be required by them for the purposes for which the same were authorised to be raised. Application of money.

20. All costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Newcastle Company and may in whole or in part be defrayed out of revenue. Costs of Act.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C 2; 120 George Street, Edinburgh 2;
39-41 King Street, Manchester 2; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 4*d.* net

(P. 656)